TOWN OF DAVIE
COMMUNITY REDEVELOPMENT AGENCY BOARD
MEETING MINUTES
NOVEMBER 15, 2023
DAVIE PINE ISLAND PARK – MULTIPURPOSE CENTER CYPRESS ROOM
3801 S. PINE ISLAND ROAD
DAVIE, FLORIDA
6:00 P.M.

I. PLEDGE OF ALLEGIANCE

The meeting was called to order at 6:00 p.m.

II. ROLL CALL

Present at the CRA meeting were Chair Paul, Board Members Starkey, Hattan and Whitman. Also present were CRA Executive Director/Town Administrator Lemack, CRA Director/Assistant Town Administrator Holste, CRA Attorney Weinthal, Economic Development Manager Thomas, CRA Program Manager Ellett, and Board Secretary Brewster. Chair Paul asked for a motion to excuse Vice Chair Luis as he was stuck in traffic due to all the rain. Board Member Hattan made a motion, seconded by Board Member Starkey. In a voice vote, all voted in favor. (Motion carried 4-0) Vice Chair Luis, arrived at 6:04 p.m.

III. PRESENTATION

IV. APPROVAL OF CONSENT AGENDA

Chair Paul asked if anyone would like to pull any of the items from the Consent Agenda. Chair Paul mentioned she would like to pull Item #3. Seeing none, Chair Paul asked for a motion to approve the Consent Agenda minus Item #3. Board Member Hattan made a motion to approve the Consent Agenda minus Item #3. The motion was seconded by Chair Paul. In a voice vote, all voted in favor. (Motion carried 4-0)

Minutes

1. **NOVEMBER 1, 2023, MEETING MINUTES**

Resolutions

2. **VACATION – A RESOLUTION OF THE TOWN OF DAVIE COMMUNITY REDEVELOPMENT AGENCY APPROVING THE VACATION OF AN INGRESS AND EGRESS EASEMENT AS MORE SPECIFICALLY DESCRIBED IN EXHIBIT "A" ATTACHED HERETO, IN ACCOMMODATION OF FUTURE DEVELOPMENT WITHIN THE ALTIS PLAT INCLUDING THE PROPERTIES FORMERLY KNOWN AS "DAVIE-COOPER CITY CHAMBER OF COMMERCE" LOCATED AT 4185 DAVIE ROAD, THE "DAVIE PROFESSIONAL BUILDING" LOCATED AT 4179 DAVIE ROAD, AND THE PROPERTY LOCATED AT 4175 DAVIE ROAD; PROVIDING FOR CONFLICT; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.**
3. **PURCHASE AND SALE AGREEMENT – A RESOLUTION OF THE TOWN OF DAVIE COMMUNITY REDEVELOPMENT AGENCY, APPROVING THE PURCHASE AND SALE AGREEMENT BETWEEN THE TOWN OF DAVIE COMMUNITY REDEVELOPMENT AGENCY, THE TOWN OF DAVIE AND WO – DAVIE MF, LLC, A LIMITED LIABILITY CORPORATION OF WHITE OAK**

DEVELOPMENT GROUP; PROVIDING FOR SEVERABILITY; PROVIDING FOR CONFLICT; AND PROVIDING FOR AN EFFECTIVE DATE.

Director Holste provided a brief presentation and update regarding Item #3. He mentioned the White Oak Purchase and Sale Agreement is on the CRA Agenda for consideration and the Purchase and Sale Agreement and Parking Agreement is on the Town Council Agenda for consideration. Director Holste introduced Andrew Burnham and Elizabeth Summerstein representing White Oak Development Group.

Director Holste provided a brief recap and mentioned:

- The Altis Plat was approved by the Town Council in October 2022 with 286 residential units and 1,750 square feet of commercial space. Subsequently, this plat was approved by Broward County in August 2023.

- Timeline – previous to tonight's approval, the Altman Development Group was proposing a project based on the Altman Plat.
    - October 2022 – Altis Site Plan approved
    - January 2023 – Altman Developer's Agreement terminated.
    - May 18, 2023 – Paragon Letter of Intent (LOI) received
    - May 26, 2023 – June 27, 2023 – Surplus Property Notice Period
    - June 27, 2023 – White Oak LOI received
    - July 20, 2023 – July 27, 2023 – Request for Information (RFI) Period
    - September 6, 2023 – CRA and Town Council selection of White Oak LOI
    - November 15, 2023 – CRA and Town Council will consider the Purchase and Sale Agreement including the Developer's Agreement and Crossover Agreement (Exhibits to the Purchase and Sale Agreement) negotiated between the Town, CRA and WO – Davie MF, LLC, a limited liability company of White Oak Development Group ("White Oak").
        - White Oak Purchase and Sale Agreements Exhibits include:
            - Exhibit A – Legal Description
            - Exhibit B – Developer's Agreement
            - Exhibit C – Crossover Agreement
                - Governs pedestrian bridge over SW 42nd Street

            Exhibit D – Project Schedule
            - Site Plan Submittal – January 2024
            - Site Plan Approval – May 2024
            - Obtainment of Building Permits – November 2024
            - Property Closing – December 2024

- White Oak Project Scope
    - Residential
    - 286 residential units
    - 4 stories
    - Pedestrian Bridge over SW 42nd Street

Director Holste mentioned the CRA and Town will provide an economic incentive (reduced land price) of over $7 million based on the latest appraisal. If the transaction closes, the $11,440,000 shall be divided proportionately based on land size between the CRA and the Town. The Town will receive approximately 45.2% of the revenue or $5,158,219. The CRA will receive approximately 54.8% of the revenue or $6,241,781.

White Oak will construct SW 65 Avenue between SW 42 Street and SW 43 Street based on the previously approved design. Prior to property closing, White Oak shall deliver the deposits based on the following milestones:

- Initial Deposit – three business days after the Effective Date - $100,000
- First Additional Deposit – three business days after the end of the Investigation Period - $400,000
- Second Additional Deposit – three business days after the required approvals less the Master Permit - $400,000

If the Developer fails to commence vertical construction of the Project within twelve (12) months following the Closing for any reason other than a Force Majeure Event (as hereinafter defined), the Town of Davie and Davie CRA shall have the right to repurchase the Land from Developer for a reduced cost of $10 million or a reduction of $1,440,000 based on a purchase price of $11,440,000.

- White Oak is also proposing to construct a pedestrian bridge over SW 42nd Street. During this time, SW 42nd Street will close for up to six months to provide construction of both buildings as well as a pedestrian bridge over SW 42nd Street. Working with White Oak, we are going to try and limit the closures and the impact they may have on the rodeo grounds and special events.

- The project includes 20% workforce housing with three (3) low-income units in compliance with the Town's inclusionary housing ordinance. The restrictions related to the workforce housing and low-income units will be finalized during site plan approval.

- The Town will contribute $600,000 for the provision of three (3) low-income units that will meet the Town's obligations for the Community Development Block Grant (CDBG) funds utilized to purchase the former Chamber of Commerce property (4185 Davie Road).

- Director Holste mentioned the taxable value of the project is estimated at $87.5 million with a one-time revenue of $3.2 million which includes impact fees, permits, water, and sewer connection fees. The annual revenue is estimated at $960k which includes property taxes, fire assessments, franchise and utility taxes, and intergovernmental revenue and assumes FY2028 tax roll. No CRA revenue is anticipated.

- The Exhibits in the agreement include:

    - Exhibit A – Legal Description
    - Exhibit B – Developer's Agreement
    - Exhibit C- Crossover Agreement
        - Governs pedestrian bridge over SW 42nd Street.

- Exhibit D
- Site Plan Submittal – January 2024
- Site Plan Approval – May 2024
- Obtainment of Building Permits – November 2024
- Property Closing – December 2024 with a groundbreaking in 2024 or early 2025.

Director Holste mentioned he covered the Purchase and Sale Agreement, and all the related Exhibits and now he would like to cover the White Oak Parking Agreement for the temporary use of the Huck Liles property. He mentioned the White Oak Parking Agreement will appear on the Town Council Agenda and they are proposing to use:

- The northeast quadrant of the Huck Liles property for temporary parking for their construction workers
- The term of the Agreement is 18 months.
- The cost is $8,000 per month to utilize the property. The funds per the Restrictive Covenant will be used for improvements to the Bergeron Rodeo Grounds and Arena. Anytime the grounds are needed for a special event, the Town will identify another area for the workers to park for the day.

Chair Paul asked if anyone had any questions.

- Vice-Chair Luis questioned the timeline and wondered if it was possible to go vertical within the time specified in the agreement. Director Holste mentioned they negotiated the project with the developer and they agreed to that timeline.
- Board Member Starkey mentioned she had a similar conversation with Director Holste earlier in the day he answered all of her questions and explained everything to her. She thanked staff for their hard work on the WO-Davie MF, LLC project and was a supporter of mixed-use and while it's not mixed-use, she was pleased that they were not going to exceed four (4) stories and that they were including 20% workforce housing and affordable housing. Director Holste also thanked Glenda Martinez for her assistance with the project.
- Chair Paul agreed with Board Member Starkey's comments and thanked Director Holste for all his hard work on this project.

Chair Paul asked for a motion to approve Item #3 as revised. Board Member Whitman made a motion to approve Item #3 as revised. The motion was seconded by Vice-Chair Luis. In a voice vote, all members voted in favor. (Motion passed 5-0)

V. DISCUSSION OF CONSENT AGENDA ITEMS

VI. PUBLIC HEARING

VII. OLD BUSINESS

VIII. NEW BUSINESS

IX. SCHEDULE OF NEXT MEETING

The next CRA Board meetings will be held at 6:00 p.m. on:

- December 6, 2023
- January 17, 2024

X. CHAIR AND BOARD MEMBER COMMENTS

- Chair Paul asked for an update regarding the Davie Road lighting. Program Manager Ellett mentioned the project has been a bit challenging and they continue to work with Jonathan Vogt, the Town Engineer on this project. Last night, they were able to restore some of the colored lighting, but the project is still being worked on.

XI. CRA DIRECTOR COMMENTS

Director Holste mentioned he was going to defer to Program Manager Ellett to provide the reports. Program Manager Ellett gave a brief update on the following:

- The Tax Increment Financing invoices have been mailed to the various taxing authorities which include the Town of Davie, Broward County, North Broward Hospital District, South Broward Hospital District, Central Broward Water Control District and Children's Services Council of Broward County.
- Holiday lighting was installed along the Davie Road corridor prior to the Orange Blossom Festival. The roadway will remain lit until after the Orange Blossom Festival.

XII. CRA ATTORNEY COMMENTS - NONE

XIII. ADJOURNMENT

There being no further business to discuss and no objections, the meeting was adjourned at 6:15 p.m.

_____ _____

Date

Judy Paul, Chair
Town of Davie Community Redevelopment Agency

ATTEST:

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Board Secretary